Agenda Summary Min

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MINUTES OF A CITY COUNCIL MEETING

February 25, 2025

12:30 PM

Mayor Keeley opened the City Council Closed Session at 12:30 p.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, City Attorney T. Condotti, Director of Information Technology K. Morgan (via Zoom), Deputy City Clerk Administrator J. Wood.

Statements of Disqualification - None.

Statements of Disqualification - None.

Public Comment

Mayor Keeley opened the public comment period at 12:32 p.m. There were no speakers. Mayor Keeley closed the public comment period at 12:32 p.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Conference with Legal Counsel - Liability Claims (Government Code §54956.95)

   Claimant: Garrison Property and Casualty Insurance

   Claim against the City of Santa Cruz

Council received a status report, took up under agenda item 9, and no reportable action was taken.

2. Conference with Labor Negotiators (Government Code §54957.6)

   SEIU Temporary Employees
   SEIU Service Employees
   Mid Managers, OE3
   Supervisors, OE3
   Fire Management
   Fire, IAFF
   Police Management
   Police Officers Association
   Executives

   City Negotiator - Sara De Leon

Council received a status report from the City Negotiator, and no reportable action was taken.

3. Conference with Legal Counsel - Existing Litigation (Government Code §54956.9(d)(1))

   GVC St. George, LLC v. City of Santa Cruz
   (United States District Court Case No.CV-07695-BLF)

Council received a status report, and took no reportable action was taken.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
February 25, 2025

1:30 PM

Call to Order – Mayor Keeley called the meeting to order at 1:30 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Calder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton (via Zoom), City Attorney T. Condotti, Chief of Fire R. Oatey, Director of Economic Development and Housing B. Lipscomb (via Zoom), Director of Information Technology K. Morgan (via Zoom), Director of Water H. Luckenbach (via Zoom), Chief of Police B. Escalante (via Zoom), Director of Planning and Community Development L. Butler, Principal Management Analyst V. Pearson, Development Manager B. Borguno, Records Coordinator B. Inclan, Deputy City Clerk Administrator J. Wood.

Oral Communications Announcement - The Mayor provided a brief announcement about Oral Communications.

Oral Communications

At 1:31 p.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

James Ewing Whitman spoke regarding the Board of Supervisors' meeting.

Gary Cole spoke regarding various cities that created greenbelts and community spaces.

At 1:37 p.m. Mayor Keeley closed Oral Communications.

Presentations

4. Parking for Hope Check Presentation

Vice Mayor Kalantari-Johnson spoke and presented a check on behalf of the City to the Downtown Association's Parking for Hope Program. Program Manager Heather Perez spoke.

Presiding Officer's Announcements

Statements of Disqualification – None.

Additions and Deletions - Deputy City Clerk Administrator J. Wood announced items 14 and 16 have been continued to the March 11, 2025 City Council meeting, and item 17 has been continued to a future meeting.

City Attorney Report on Closed Session – See page 7830 for the report.

Council Meeting Calendar

5. The City Council reviewed and did not revise the meeting calendar attached to the agenda.

Consent Agenda

Mayor Keeley opened the public comment period. The following person spoke:

James Ewing-Whitman made a comment on item 6.

Mayor Keeley closed the public comment period.

MOTION: Councilmember Golder moved, seconded by Councilmember Brunner, to approve the Consent Agenda.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

6. Minutes of the February 11, 2025 City Council Meeting (CC)

   LOCATION: None

   Motion carried to approve as submitted.

Consent Agenda (continued)

7. City Council Nomination of Rachel Dann to the County of Santa Cruz's Measure Q Safe Drinking Water, Clean Beaches, Wildfire Risk Reduction, and Wildlife Protection Act (WWWPA) Citizen's Oversight Advisory Board (CC)

   LOCATION: Countywide

   Motion carried to nominate Rachel Dann for appointment to the County of Santa Cruz's Measure Q Safe Drinking Water, Clean Beaches, Wildfire Risk Reduction, and Wildlife Protection Act (WWWPA) Citizen's Oversight Advisory Board.

8. Resolution Establishing the 2025 Security Deposit Interest Rate for Residential Rental Property (EDH)

   LOCATION: Citywide

   Resolution No. NS-30,444 was adopted establishing the 2025 interest rate for the residential security deposits at 0.01% and rescinding Resolution No. NS-30,287.

9. Liability Claim Filed Against the City of Santa Cruz (FN)

Motion carried to return as late claim 1) Garrison Property and Casualty Insurance, based on staff recommendation.

10. Department of Toxic Substances Control (DTSC) Equitable Communities Revitalization Grant for Soils Investigation and Remediation Planning in the Lower Main Meadow, Pogonip Open Space – Third Amendment to Agreement for Environmental Consulting Services (PR)

    LOCATION: District 5

    Motion carried to approve and authorize the City Manager to execute an amendment to the Professional Services Agreement with Remediation Risk Management, Inc. for environmental consulting services to investigate and plan for the remediation of soil contamination in the Lower Main Meadow, Pogonip Open Space, in a form approved by the City Attorney. The Director of Parks and Recreation is authorized to execute contract amendments within the approved project budget.

End Consent Agenda

Consent Public Hearing

Councilmember O'Hara pulled item 12 for further discussion.

Mayor Keeley opened the public comment period. The following people spoke:

Rachel Sotos made a comment on item 12.

Garrett made a comment on item 11.

James Ewing-Whitman made a comment on item 13.

Mayor Keeley closed the public comment period.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember Trigueiro, to approve the remaining Consent Public Hearing Agenda.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

11. 2nd Reading and Final Adoption of Ordinance No. 2025-02 Related to the Parking Lease Revenue Bond Authorization (FN/EDH/PW)

    LOCATION: District 4

    Motion carried to adopt Ordinance No. 2025-02 amending and restating Chapter 16.26 of the Municipal Code to permit the issuance of Parking Revenue Bonds by the City.

Consent Public Hearings (continued)

12. 2nd Reading and Final Adoption of Ordinance No. 2025-[illegible] Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN)

    LOCATION: Citywide

    Councilmember O'Hara gave a presentation.

    Mayor Keeley opened the public comment period. The following people spoke.

    James Ewing-Whitman
    Curtis Reliford
    Greg Benson

    Mayor Keeley closed the public comment period.

    MOTION: Councilmember O'Hara moved, seconded by Vice Mayor Kalantari-Johnson, to:

- Direct staff to return to City Council within two months with an updated noise ordinance that meets the following objectives:
  - Expands the ordinance to all commercial zones throughout the City.
  - Uses California Department of Public Health guidelines to limit noise impacting public health.
  - Uses decibel measurement criteria instead of distance-based rules.
  - Ensures the ordinance only regulates noise harmful to public health.
  - Provides clear enforcement guidelines to Council.
- Engage with interested community members on permitting options to continue current public expression activities.

Consent Public Hearings (continued)

12. 2nd Reading and Final Adoption of Ordinance No. 2025-03 Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) LOCATION: Citywide (continued)

ACTION: The motion failed with the following vote.

AYES:	Councilmembers Golder, O'Hara; Vice Mayor Kalantari-Johnson.
NOES:	Councilmembers Trigueiro, Brunner, Newsome; Mayor Keeley.
ABSENT:	None.
DISQUALIFIED:	None.

MOTION: Councilmember Newsome moved, seconded by Councilmember Brunner, to re-introduce for publication Ordinance No. 2025-03 amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and adding objective standards to both chapters with the following amendments:

Section 9.36.020(C):

From:

> "If the noise producing source is on public property in a commercial zone (as defined below), amplified noise and/or repetitive banging or percussive noises that can be heard 75 or more feet from the noise-producing source are presumptively unreasonably loud or disturbing as prohibited by this section. This presumption, however, shall not apply to permitted amplification or percussion used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65) and Major Public Special Events (Chapter 10.64))."

To:

> "If the noise producing source is on public property in a commercial zone (as defined below), amplified noise and/or repetitive banging or percussive noises that can be heard **125** or more feet from the noise-producing source are presumptively unreasonably loud or disturbing as prohibited by this section. This presumption, however, shall not apply to permitted amplification or percussion used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65) and Major Public Special Events (Chapter 10.64))."

Consent Public Hearings (continued)

12. 2nd Reading and Final Adoption of Ordinance No. 2025-03 Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) LOCATION: Citywide (continued)

MOTION (continued):

Section 9.40.010(B)(3):

From:

"Shall be operated at a volume of sound that is not be unreasonably loud, raucous, jarring, disturbing or a nuisance to reasonable persons of normal sensitiveness within the range of audibility, considering the factors set forth in Section 9.36.020(B). If the noise producing source is on public property in a commercial zone (as defined by SCMC §9.36.020(C)(1)), amplified noise that can be heard 75 or more feet from the noise-producing source is presumptively unreasonably loud or disturbing as prohibited by this subsection. This presumption, however, shall not apply to permitted amplification used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65), Major Public Special Events (Chapter 10.64))"

To:

"Shall be operated at a volume of sound that is not be unreasonably loud, raucous, jarring, disturbing or a nuisance to reasonable persons of normal sensitiveness within the range of audibility, considering the factors set forth in Section 9.36.020(B). If the noise producing source is on public property in a commercial zone (as defined by SCMC §9.36.020(C)(1)), amplified noise that can be heard **125** or more feet from the noise-producing source is presumptively unreasonably loud or disturbing as prohibited by this subsection. This presumption, however, shall not apply to permitted amplification used in special events or performances permitted by the City under a different part of the Municipal Code (e.g., Public Gathering and Expression Events (Chapter 10.65), Major Public Special Events (Chapter 10.64));"

FRIENDLY AMENDMENT: Councilmember Golder requested to expand to all commercial zones and direct staff to return in 6 months with data. Councilmember Newsome did not accept.

Consent Public Hearings (continued)

12. 2nd Reading and Final Adoption of Ordinance No. 2025-03 Amending Santa Cruz Municipal Code Chapter 9.36 ("Noise") and Chapter 9.40 ("Sound Amplifying Equipment") and Adding Objective Standards to Both Chapters (CN) LOCATION: Citywide (continued)

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Brunner, Newsome, Golder; Mayor Keeley.
NOES:	Councilmembers Trigueiro, O'Hara; Vice Mayor Kalantari-Johnson.
ABSENT:	None.
DISQUALIFIED:	None.

13. Minor Modifications to the Previously Adopted Amendments to Chapter 18.15 of the Municipal Code Requiring Additional Energy Standards for Alterations and Additions to Existing Single-Family Homes (CM/PL)

LOCATION: Citywide

Motion carried to introduce for publication Ordinance 2025-04 making minor changes to the previously adopted Municipal Code Chapter 18.15 which adopted local amendments to Title 24, Part 6 of the California Code of Regulations (California Energy Code). Council finds the amendments are consistent with the Negative Declaration approved for the City of Santa Cruz 2030 Climate Action Plan adopted by City Council on September 13, 2022. The ordinance is also exempt from CEQA under the general rule, 15061(b)(3) and per CEQA Guidelines Section 15308, Class 8, Actions by Regulatory Agencies for Protection of Natural Resources.

Public Hearings

14. Public Safety Impact Fee Nexus Study and Proposed Fees Update (FD/PD)

LOCATION: Citywide

This item was continued to the March 11, 2025 Council meeting and was not discussed.

Public Hearings

15. Childcare Impact Fee Updates (PL)

LOCATION: Citywide

Principal Management Analyst V. Pearson gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. The following person spoke.

Unidentified person

Mayor Keeley closed the public comment period.

Director of Planning and Community Development L. Butler responded to Council questions.

MOTION: Councilmember Golder moved, seconded by Vice Mayor Kalantari-Johnson, to:

- Introduce for publication Ordinance No. 2025-05 amending City of Santa Cruz Municipal Code Chapter 18.48 "Childcare Impact Fees," modifying Section 18.48.050 Exemptions; and

- Adopt Resolution No. NS-30,445 updating the Childcare Impact Fees for residential and non-residential development and rescinding Resolution No. NS-29,812.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Public Hearings (continued)

16. 313 Swift Street (Application No. CP24-0104) – Assessor's Parcel Number 003-161-32 – Request for 1) Acknowledgement of the Environmental Determination and Adoption of a Mitigated Negative Declaration and Mitigation Monitoring and Reporting Program (MMRP) Pursuant to Section 15074 of the California Environmental Quality Act (CEQA); and 2) Consideration of the Application for a Planned Development Permit, Coastal Permit, Design Permit, and Heritage Tree Removal Permit to Allow Construction of a New, Four-Story, Approximately 120,604 Square-Foot Multifamily Educator Workforce Housing Project Encompassing Approximately 100 Residential Units, Approximately 119 Parking Spaces, New Landscaping, and Associated Site Modifications, Including the Removal of Up to Six (6) Heritage Trees, on a Site Located in the P-F/CZ-O (Public Facilities/Coastal Zone Overlay) Zoning District, Based on the Findings and Conditions of Approval Listed In Exhibit "A." (Environmental Review: Initial Study/Mitigated Negative Declaration). (Applicant/Filed: Santa Cruz City School District/June 27, 2024) (PL)

    LOCATION: District 6

This item was continued to the March 11, 2025 Council meeting and was not discussed.

General Business

17. Ordinance Amending Chapter 21.07 of the Santa Cruz Municipal Code to Create a Process Guaranteeing a Fair Rate of Return to Landlords of Properties with Expiring Affordability Agreements (CA)

    LOCATION: Citywide

    This item was continued to a future meeting and was not discussed.

General Business

18. Resolution to Accept and Appropriate the Award from the State Affordable Housing Sustainable Communities (AHSC) Program for the Downtown Library and Affordable Housing Project (EDH)

    LOCATION: District 4

    Director of Economic Development and Housing B. Lipscomb introduced the item.

    Development Manager B. Borguno gave a presentation.

    Mayor Keeley opened the public comment period. The following people spoke.

    Unidentified person
    Sarah Beck
    Jim Rendler
    Casey Beyer

    Mayor Keeley closed the public comment period.

    MOTION: Councilmember Newsome moved, seconded by Councilmember O'Hara, to adopt Resolution No. NS-30,446 authorizing the City Manager, or the Economic Development and Housing Director, to accept, and appropriate grant funds from the California Strategic Growth Council (SGC), as awarded, through the Round 7 State Affordable Housing and Sustainable Communities Grant Program (AHSC); and, to negotiate, execute, enter into, and deliver any necessary contracts, agreements, documents, amendments, in a form to be approved by the City Attorney; and take any other actions necessary to implement the grant funded project, in an aggregate amount(s) not to exceed the grant award of $33,502,820.

    ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Adjournment – Councilmember Golder moved, seconded by Councilmember Trigueiro, to adjourn. By consensus City Council adjourned at 3:03 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

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